

24LBCV02927 24LBCV02927

County: los-angeles

Division: Civil Law and Motion

Department: S28

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Case Number: 24LBCV02927 Hearing Date: August 11, 2026 Dept: S28

BACKGROUND

On November 12, 2024, Plaintiff Teodocio Garcia, Jr. was involved in a vehicle collision with a truck operated by Defendant Thalia Funeszazueta in the course and scope of employment for Defendant Ryder Integrated Logistics, Inc. On December 31, 2024, and July 14, 2025, Plaintiff filed a complaint and first amended complaint for Negligence and Negligence Per Se.

DISCUSSION

Applicable Law

Continue Trial

Pursuant to California Rules of Court rule 3.1332(a):

“Continuances

before or during trial in civil cases are disfavored. The date set for trial shall be firm. . . .

Except for good cause, the motion [for continuance] shall be made on written notice to all other parties. The notice

shall be given and motion made promptly on the necessity for the continuance being ascertained. A continuance before

or during trial shall not be granted except on an affirmative showing of good cause under the standards recommended in section 9 of the Standards of Judicial Administration. . . .

“c)

Grounds for continuance

“Although

continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: ...

(1) The unavailability of an essential lay or expert

witness because of death, illness, or other excusable circumstances; ... (3)

The unavailability of a party because of death, illness, or other excusable circumstances ...”

Other factors set

forth in California Rules of Court rule 3.1332(d) that are relevant in granting a continuance include: “(1) The proximity of the trial date; (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party; (3) The length of the continuance requested; (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; (5) The prejudice that parties or witnesses will suffer as a result of the continuance; (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; (7) The court’s calendar and the impact of granting a continuance on other pending trials; (8) Whether trial counsel is engaged in another trial; (9) Whether all parties have stipulated to a continuance; (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and (11) Any other fact or circumstance relevant to the fair determination of the motion or application.”

Analysis

On June 11, 2026,

Defendants Thalia Funeszazueta and Ryder Integrated Logistics, Inc. filed a motion to continue the trial. On June 23, 2026, the court granted Defendants’ motion to continue the trial, and set new final status conference and trial dates from September 18, 2026, and September 28, 2026, to October 23, 2026 and November 2, 2026, respectively. The motion was not taken off-calendar.

On July 21, 2026,

Plaintiff filed a notice of joinder to the motion to continue the trial date.

Plaintiff represents a July 24, 2026, scheduled shoulder operation was delayed due to concerns over recent neurological issues presenting as tremors or shaking. Neurological tests and a brain MRI are required before the orthopedist can undertake any shoulder surgery. Plaintiff estimates a new surgical date of October or November 2026. Plaintiff therefore requests a continuance to January 11, 2027.

Plaintiff also

notes that the treating surgeon on the September 30, 2025, C-5 and C-6 discectomy and fusion, will not be available for trial the week of November 2, 2026, but can be available the second week of January 2027.

Plaintiff

represents that Defendants also agree to the January 11, 2027, continuance date. Plaintiff's counsel is scheduled for a trial on July 25, 2026, in Los Angeles County. [Declaration of Nicholas Neidzowski.]

The unavailability

of both one of the treating physicians as well as delays in treatment for Plaintiff due to other unforeseen medical issues supports a second continuance of the trial.

The motion

previously addressed the specific necessity for continuing discovery and motion to cutoff dates, due to pending depositions and other incomplete expert declarations, including on the issue of medical specials. Pursuant to California Code of Civil Procedure section 2024.050, the Court may continue the discovery cut-off date. Given the delays associated with Plaintiff's treatment, the court assumes potential new experts and/or delays in taking the depositions of treating physicians.

The motion is

therefore granted as to both a continuance of the trial date, and extension of discovery and motion cutoff. The court will review its calendar with counsel at the time of the hearing.

CONCLUSION

Defendants' motion and the joinder to

the motion to continue the trial and extend the discovery and motion cutoff is

GRANTED.